THE GOVERNMENT BUILDINGS ACT, 1899

ARRANGEMENT OF SECTIONS

SECTIONS

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3. Exemption of certain Government buildings from municipal areas to regulate the erection, etc., of buildings within municipalities.
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IndiaCode

THE GOVERNMENT BUILDINGS ACT, 1899

ACT NO. 4 OF 1899

[3*rd February*, 1899.]

An Act to provide for the exemption from the operation of municipal building laws of certain buildings and lands which are the property, or in the occupation, of the Government and situate within the limits of a municipality.

WHEREAS it is expedient to provide for the exemption from the operation of municipal building laws of certain buildings and lands which are the property, or in the occupation, of the Government and situate within the limits of a municipality;

It is hereby enacted as follows:—

1. Short title and extent.—(*1*) This Act may be called the Government Buildings Act, 1899.

(*2*) It extends to the whole of India except [1][the territories which, immediately before the 1st November, 1956, were comprised in Part B States] [2]***.

[3]* * * * *

2. "Municipal authority" defined.—In this Act the expression "municipal authority" includes a municipal corporation or a body of municipal commissioners constituted by, or under the provisions of, any law or enactment for the time being in force.

3. Exemption of certain Government buildings from municipal laws to regulate the erection, etc., of buildings within municipalities.—Nothing contained in any law or enactment for the time being in force to regulate the erection, re-erection, construction, alteration or maintenance of buildings within the limits of any municipality shall apply to any building used or required for the public service or for any public purpose, which is the property, or in the occupation, of the Government, or which is to be erected on land which is the property, or in the occupation, of the Government :

Provided that, where the erection, re-erection, construction or material structural alteration of any such building as aforesaid (not being a building connected with [4]*** defence, or a building the plan or construction of which ought, in the opinion of [5][the Government concerned], to be treated as confidential or secret) is contemplated, reasonable notice of the proposed work shall be given to the municipal authority before it is commenced.

4. Objections or suggestions as to erection, etc., of certain Government buildings within municipalities, how to be made and dealt with.—(*1*) In the case of any such building as is mentioned in the last preceding section (not being a building connected with [4]*** defence or a building the plan or construction of which ought, in the opinion of [5][the Government concerned], to be treated as confidential or secret), the municipal authority, or any person authorized by it in this behalf, may, with the permission of the State Government previously obtained, but not otherwise, and subject to any restrictions or conditions which may, by general or special order, be imposed by the State Government, inspect the land and building and all plans connected with its erection, re-erection, construction or material structural alteration, as the case may be, and may submit to the State Government a statement in writing of any objections or suggestions which such municipal authority may deem fit to make with reference to such erection, re-erection, construction or material structural alteration.

(*2*) Every objection or suggestion submitted as aforesaid shall be considered by the State Government, which shall, after such investigation (if any) as it shall think advisable, pass orders

1. Subs. by the Adaptation of Laws (No. 2) Order, 1956, for "Part B States".
2. The word "and" rep. by Act 10 of 1914, s. 3 and the Second Schedule.
3. Sub-section (*3*) rep. by s. 3 and the Second Schedule, *ibid.*
4. The word "Imperial" rep. by the A. O. 1948.
5. Subs. by the A. O. 1937, for "the Govt.".

thereon, and the building referred to therein shall be erected, re-erected, constructed or altered, as the case may be, in accordance with such orders :

Provided that, if the State Government overrules or disregards any such objection or suggestion as aforesaid, it shall give its reasons for so doing in writing.

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1. Sub-section (*3*) rep. by the A.O. 1937.